IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-11
CA(CAA) No.54/230/232/ND/2021

IN THE MATTER OF:
Asthluxmi Mercantile Pvt. Ltd. and Green Woodcrafts Pvt. Ltd. **....Applicant**

SECTION
U/s 230-232 **Order delivered on 22.12.2021**

CORAM:
SHRI ABNI RANJAN KUMAR SINHA
HON'BLE MEMBER (JUDICIAL)

SHRI AVINASH K. SRIVASTAVA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : CS Suraj Sharma
For the Respondent :

ORDER

CLARIFICATION
PER SE SRI ABNI RANJAN KUMAR SINHA MEMBER (J)

On perusal of the application, we noticed that in relation to the Transferee Company i.e. **Green Woodcrafts Private Limited,** it has been represented that there are 53 Unsecured Creditors, out of which; the consent affidavits of 18 Unsecured Creditors constituting 90% of the total value have been placed on record. However, only 13 consent certificates of the Unsecured Creditors are annexed with the application. The details of the aforementioned 13 certificates annexed at Annexure A-18 (Colly.) are as follows:

Sr. No. on the Unsecured Creditors List (Annexure A-17)	Unsecured Creditor	Pg. No.
1.	Anil Kumar Agarwal	242-243
2.	Asthluxmi Mercantile Private Limited	245-246

3.	Narendra Kumar Khetawat	248-249
4.	Prakash Kumar Khetawat	251-252
5.	Rashmi Devi Khetawat	254-255
6.	Sunil Agarwal	257-258
7.	Vikash Khetawat	260-261
47.	Starwood Veneers Pvt. Ltd.	263-264
29.	MM Dotcom Graphics Pvt. Ltd.	266-267
46.	Star Trading Company	269-270
18.	Coast to Coast Designs Pvt. Ltd.	272-273
32.	Pradeep Timber Mart	275-276
17.	Century Plyboards (I) Ltd.	277-280

Therefore, the Petitioner is directed to place on record, the remaining 5 consent certificates to satisfy the criteria u/s 230(9), for dispensation from convening the meeting of the creditors.

Sd/- 22/12/2021

(AVINASH K. SRIVASTAVA)
MEMBER (T)

Sd/-

(ABNI RANJAN KUMAR SINHA)
MEMBER (J)